



Notification Waiver Determination

HupCo – AMES Australasia

Acquisition	HupCo Holdings Pty Ltd (HupCo) applied for a notification waiver in respect of its proposed acquisition of an indirect controlling interest in Griffon Australia Holdings Pty Ltd (Griffon Australia Holdings), operating as AMES Australasia, from Griffon AMES HoldCo LLC (Griffon AMES), as described in the transaction documents provided as part of the application (the Acquisition). As part of the Acquisition: ▪ HupCo ParentCo Pty Ltd, an indirect wholly owned subsidiary of HupCo TopCo Pty Ltd, will acquire all shares in Griffon Australia Holdings ▪ Griffon AMES will acquire a minority interest in HupCo TopCo Pty Ltd, to retain the remaining indirect interest in Griffon Australia Holdings. HupCo will retain the majority interest in HupCo TopCo Pty Ltd.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	16 July 2026

Parties to the Acquisition	The acquirer, HupCo, is a special purpose vehicle (SPV) that has recently been incorporated on behalf of the current AMES Australasia management team. HupCo does not currently operate any business or hold any other interests (other than 100% of the interests in three SPVs established for the Acquisition). The target, Griffon Australia Holdings, operating as AMES Australasia, is an Australian proprietary limited company and a subsidiary of Griffon Corporation, a U.S. diversified management and holding company that conducts business through wholly-owned subsidiaries. Griffon Corporation is listed on the New York Stock Exchange. Griffon Australia Holdings operates the AMES business in Australia, which is a leading supplier of housing and gardening tools, storage solutions and outdoor lifestyle products. The AMES brand has a longstanding presence in the Australian market and supplies its products through major hardware and retail channels. Griffon AMES is a U.S. limited liability company that currently holds all of the issued share capital of Griffon Australia Holdings.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and

	had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, there is no horizontal overlap or vertical relationships between the parties (or their connected entities) in the supply of housing and gardening tools, storage solutions and outdoor lifestyle products in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act